

Smt. Suresh Kumari @ Saroj Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 September 2016 · Writ-C No. 43368 of 2016 · **Writ disposed; licensee to decide new-connection application after formalities.**

HEADNOTE

A writ seeking a mandamus to decide a pending application for a new electricity connection was disposed of on the licensee's statement that, subject to U.P. Electricity Supply Code, 2005 formalities, the application would be decided within two weeks. The petitioner was to approach the second respondent within a week; the licensee was to intimate remaining formalities and decide the fresh-connection application within two weeks thereafter. Entitlement on merits was not adjudicated.

FACTUAL SUMMARY

Smt. Suresh Kumari alias Saroj Devi petitioned the Allahabad High Court for a mandamus commanding the second respondent to pass orders on her 5 May 2014 application for a new electricity connection, which had remained pending. The State and the distribution licensee were represented. Counsel for the second respondent submitted that grant of supply is governed by the U.P. Electricity Supply Code, 2005, and that the application would be disposed of within two weeks once the petitioner completed the prescribed formalities.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4

new-connection-application

HOLDING

On the second respondent's statement that grant of an electricity connection is governed by the U.P. Electricity Supply Code, 2005 and that, subject to the petitioner completing all formalities, the pending application would be disposed of within two weeks, the Court disposed of the writ. The petitioner was directed to approach the second respondent within one week with a copy of the order; the second respondent was to apprise remaining formalities and decide the application for a fresh connection within two weeks thereafter. Entitlement was not decided on merits. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ seeking a mandamus to decide a pending application for a new electricity connection was disposed of on the licensee's statement that, subject to U.P. Electricity Supply Code, 2005 formalities, the application would be decided within two weeks.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION ON THE MERITS OF THE 5 MAY 2014 APPLICATION

Left to the second respondent to decide after remaining Supply Code formalities are completed. ¶ 1